

HOUSE No. 879

The Commonwealth of Massachusetts

PRESENTED BY:

Tommy Vitolo

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to preserve local decision making during an emergency.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Tommy Vitolo</i>	<i>15th Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 879

By Representative Vitolo of Brookline, a petition (accompanied by bill, House, No. 879) of Tommy Vitolo for legislation to authorize cities and towns to postpone town meetings due to certain short-term emergencies. Election Laws.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 729 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to preserve local decision making during an emergency.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 30A of the General Laws is hereby amended by inserting after section 20 the
2 following 3 sections:-

3 Section 20A: (a) A town may postpone any town meeting for up to 14 calendar days,
4 with the approval of the moderator, provided that a short-term emergency prevents the meeting
5 from taking place at the scheduled place and time.

6 (b) The moderator shall provide notice of the rescheduled town meeting, in a manner
7 consistent with the notice provisions for a regularly scheduled town meeting, not less than 48
8 hours before the rescheduled meeting will take place.

9 (c) All actions taken pursuant to this section are hereby ratified, validated and confirmed
10 to the same extent as if the town meeting had been conducted in accordance with all other
11 applicable laws, charter provisions, ordinances and by-laws.

12 Section 20B: (a) In an emergency that is expected to last more than 14 days, a town may
13 request approval from the attorney general's office to hold a town meeting according to the rules
14 established in section 20 of chapter 20 of the acts of 2021. The chair of the select board or board
15 of selectmen, along with the moderator, shall submit a written request to the attorney general's
16 office requesting to meet according to said section 20 of chapter 20 of the acts of 2021,
17 explaining the nature of the emergency and how long they anticipate the emergency will last.

18 (b) Provided that the attorney general's office provides the town with written approval to
19 meet according to said section 20 of chapter 20 of the acts of 2021 for a specified length of time,
20 all actions taken pursuant to this section are hereby ratified, validated and confirmed to the same
21 extent as if the town meeting had been conducted in accordance with all other applicable laws,
22 charter provisions, ordinances and by-laws.

23 Section 20C: (a) In an emergency that is expected to last more than 14 days, a town may
24 request approval from the attorney general's office to hold public meetings and hearings
25 according to the rules established in section 20 of chapter 20 of the acts of 2021. The chair of the
26 select board or board of selectmen, or mayor, shall submit a written request to the attorney
27 general's office requesting that public meetings be held according to section 20 of chapter 20 of
28 the acts of 2021, explaining the nature of the emergency and how long they anticipate the
29 emergency will last.

30 (b) Provided that the attorney general's office provides the town with written approval to
31 meet according to section 20 of chapter 20 of the acts of 2021 for a specified length of time, all
32 actions taken pursuant to this section are hereby ratified, validated and confirmed to the same
33 extent as if the town meeting had been conducted in accordance with all other applicable laws,
34 charter provisions, ordinances and by-laws.